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Request for Information: Development of an Artificial Intelligence Action Plan

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Comment on FR Doc # 2025-02305

Submitter Information

Name: Daniel Delgado

General Comment

March 14, 2025

From:

Daniel Delgado

Writer

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Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

I am a professional writer for fiction, nonfiction, and tabletop roleplaying games. I am literally only able to make my living and support my family because of the integrity of the copyright and intellectual property system.

When a publisher wants to print any of my work, they are required by law to obtain my consent, and typically I only agree if they pay me a fee appropriate for the intended use. In this way, I am able to receive payment for each separate use of my work, such as audiobooks, reprints, and adaptations.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses like mine with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My unique work, and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing with us and cutting us out of the marketplace.

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use". This is a gross misrepresentation of the concept of "fair use".

If creators can no longer make a living at our work, we will be forced to stop doing it. This will stifle innovation and ultimately choke off the source that the AI companies claim their product depends upon.

Want to protect American innovation? Protect American creators. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems. All AI training systems should be OPT-IN only.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just

Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

Thank you for the opportunity to comment on these important issues.